Notification Waiver Determination

Bain Capital – Kakaku.com

Acquisition	Bain Capital Investors, LLC. (**Bain Capital**), through BCPE Blitz Cayman, L.P., applied for a notification waiver in respect of its proposed acquisition of Kakaku.com, Inc. (**Kakaku.com**), as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	14 August 2026

Parties to the Acquisition	The acquirer, BCPE Blitz Cayman, L.P., is a newly created special purpose vehicle solely controlled by Bain Capital. Bain Capital is a limited liability company organised in Delaware under United States law and is the ultimate general partner of numerous private equity funds. Bain Capital, through such funds, invests in companies with activities in various industries, including technology, media and telecommunications, healthcare, retail and consumer products, financial and business services, and industrial/manufacturing. The target, Kakaku.com, is a company listed on the Tokyo Stock Exchange primarily engaged in operating the online price comparison and consumer information website, Kakaku.com, which provides consumers with information about restaurants, real estate, travel and other services. Through its subsidiaries, Kakaku.com also operates a number of different businesses. In Australia, Kakaku.com is active through Time Design International Pte Ltd (**TDI**), an indirect subsidiary of Kakaku.com, incorporated in Singapore. TDI supplies dynamic packaging software to airlines and hotels (which allows them to combine and sell products such as airline tickets, hotel reservations, and rental cars), through which TDI generates commission revenues from Australian customers. TDI does not directly supply software to any Australian customers.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**).

	Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition, given: a. there is no horizontal overlap in Australia between Bain Capital (or its connected entities) and Kakaku.com (or its connected entities, including in the supply of online travel booking services b. there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act